

interested in the lease subject to his right to be recouped the purchase-money paid by him (*h*).

So where one of the trustees of a lucrative agency agreement procured the agency to be renewed to a firm, in which he was a partner, upon terms less lucrative but still beneficial, it was held that the trustee's interest in the renewed agreement formed part of the trust estate (*i*).]

*** No tenant-right where a corporation has sold to an individual.** — But where a lease had been held by a trustee of a college, and the corporation having disposed of the reversion to a stranger, the trustee purchased of the alienee, Sir W. Grant decided that the parties interested in the original lease had no equity against the trustee, for the tenant-right of renewal with a public body was gone, and the lease at a rack-rent was all that could be expected from a private proprietor (*a*).

But if the trustee of a lease with a covenant for perpetual renewal, or if any person standing in a fiduciary position in respect of such a lease acquires the legal possession of and dominion over the fee which is subject to the covenant, and so deals with the property as to make the renewal impossible by his own act and for his own benefit, he is bound to give full effect to the charges on the trust estate, and to satisfy those charges out of the acquired estate (*b*).

18. Factor, agent, &c., constructive trustees. — The principle upon which a Court of equity elicits constructive trusts might be pursued into numerous other instances; as if a factor (*c*), agent (*d*), partner (*e*), inspector under a creditor's deed (*f*), or other confidential person, acquire any pecuniary advantage

Ir. 296; but see the observations of L. J. James in *Trumper v. Trumper*, 8 L. R. Ch. App. 879.]

[*(h)* *Re Lord Ranelagh's Will*, 26 Ch. D. 590; *Phillips v. Phillips*, 29 Ch. D. 673; and see *Leigh v. Burnett*, 29 Ch. D. 231.]

[*(i)* *Bennett v. The Gaslight and Coke Company*, 52 L. J. N. S. Ch. 98.]

(*a*) *Randall v. Russell*, 3 Mer. 190.

(*b*) *Trumper v. Trumper*, 14 L. R. Eq. 295, see p. 310; affirmed 8 L. R. Ch. App. 870.

(*c*) *East India Company v. Henchman*, 1 Ves. jun. 287; S. C. 8 B. P. C. 85.

(*d*) *Fawcett v. Whitehouse*, 1 R. & M. 132; *Hichens v. Congreve*, Ib. 150; *Carter v. Horne*, 1 Eq. Ca. Ab. 7; *Brookman v. Rothschild*, 3 Sim. 153; *Gillett v. Peppercorn*, 3 Beav. 78.

(*e*) *Bentley v. Craven*, 18 Beav. 75; *Burton v. Wookey*, 6 Mad. 368.

(*f*) *Coppard v. Allen*, 4 Giff. 497; 2 De G. J. & S. 173.